

1. AMICA MUT. INS. CO. v. PAPEZ, ET AL., 24CV0522**(A) Cross-Complainant Jacobs's Motion to Reinstate Default****(B) Defendant/Cross-Defendant Papez's Demurrer and Motion to Strike Complaint****(C) Defendant/Cross-Defendant Papez's Demurrer and Motion to Strike Cross-Complaint****(D) Case Management Conference****Cross-Complainant Jacobs's Motion to Reinstate Default**

On July 10, 2026, pursuant to *Le Francois v. Goel* (2005) 35 Cal.4th 1094,¹ and alternatively, Code of Civil Procedure section and 1008, cross-complainant Jeffrey Jacobs ("cross-complainant") filed a motion to vacate the court's November 21, 2025, order granting cross-defendant Thomas Papez's ("cross-defendant") motion to set aside default, and reinstate default against cross-defendant.

On August 17, 2026, cross-defendant filed a timely opposition.

On September 2, 2026, cross-complainant filed a timely reply.

The Court of Appeal having denied cross-complainant's petition for writ of mandate challenging this court's November 21, 2025, order granting cross-defendant's motion to set aside default, this court denies the instant motion.

Defendant Papez's Demurrer and Motion to Strike Complaint

On December 5, 2025, defendant Thomas Papez ("Papez") filed a demurrer and motion to strike plaintiff Amica Mutual Insurance Company's ("plaintiff") complaint in interpleader. The demurrer and motion to strike were filed together in a single pleading.

On February 3, 2026, defendant / cross-complainant Jeffrey Jacobs ("Jacobs") filed a timely opposition. Papez filed no reply.

¹ *Le Francois* held that a trial court has inherent authority to alter or amend its own interim rulings in the same case even in the absence of new facts or law, as long as the court gives the parties notice that it may do so and a reasonable opportunity to litigate the question. (*Id.*, *supra*, 35 Cal.4th at pp. 1096–1097.)

Papez specially demurs to the complaint on the ground that there is another action pending between the same parties on the same cause of action, namely, *Jacobs v. Papez, et al.* (El Dorado Super. Ct., Case No. 22CV0891).² (Code Civ. Proc., § 430.10, subd. (c).) Although Case Number 22CV0891 was pending at the time Papez filed this demurrer, on July 8, 2026, the court granted Jacobs's request to dismiss said action without prejudice. Presently, the related case is not active. Accordingly, the court overrules Papez's demurrer on this ground.

Papez's motion to strike is based on the same ground as the demurrer. Therefore, the court denies the motion to strike.

The court orders Papez to file and serve an answer to the complaint within 10 days of the notice of entry of order.

Defendant/Cross-Defendant Papez's Demurrer and Motion to Strike Cross-Complaint

On December 5, 2025, defendant / cross-defendant Thomas Papez ("Papez") filed a demurrer and motion to strike defendant / cross-complainant Jeffrey Jacobs's ("Jacobs") cross-complaint. The demurrer and motion to strike were filed together in a single pleading.

On January 23, 2026, Jacobs filed a timely opposition. Papez filed no reply.

Papez specially demurs to the sole cause of action for declaratory relief on the ground that there is another action pending between the same parties on the same cause of action, namely, *Jacobs v. Papez, et al.* (El Dorado Super. Ct., Case No. 22CV0891).³ (Code Civ. Proc., § 430.10, subd. (c).) Although Case Number 22CV0891 was

² There is yet another related case, *Papez v. Friedland, et al.* (El Dorado Super. Ct., Case No. 23CV1623). Although said case is currently pending, it does not name defendant/cross-complainant as a party. It is an action filed by Papez against his former clients only, Brian and Diane Friedland.

³ There is yet another related case, *Papez v. Friedland, et al.* (El Dorado Super. Ct., Case No. 23CV1623). Although said case is currently pending, it does not name defendant/cross-complainant as a party. It is an action filed by Papez against his former clients only, Brian and Diane Friedland.

pending at the time Papez filed this demurrer, on July 8, 2026, the court granted Jacobs's request to dismiss said action without prejudice. Presently, the related case is not active. Accordingly, the court overrules Papez's demurrer on this ground.

Papez's motion to strike is based largely on the same ground as the demurrer. Papez claims that the lien dispute should be litigated in his action against the Friedlands, Case Number 23CV1623. However, that case does not include Jacobs as a party to the action. Further, the court intends to consolidate the actions on its own motion. (Code Civ. Proc., § 1048, subd. (a).) The motion to strike is denied.

The court orders Papez to file and serve an answer to the cross-complaint within 10 days of the notice of entry of order.

Case Management Conference

Appearances are required at 3:00 p.m., Friday, September 11, 2026, in Department Three. The court notes that it intends to consolidate the active related cases, that being the instant case and Case Number 23CV1623, on its own motion. (Code Civ. Proc., § 1048, subd. (a).)

TENTATIVE RULING # 1:

(A) CROSS-COMPLAINANT JACOBS'S MOTION TO REINSTATE DEFAULT: THE MOTION IS DENIED.

(B) DEFENDANT/CROSS-DEFENDANT PAPEZ'S DEMURRER AND MOTION TO STRIKE COMPLAINT: THE DEMURRER IS OVERRULED AND THE MOTION TO STRIKE IS DENIED. DEFENDANT/CROSS-DEFENDANT PAPEZ SHALL FILE AND SERVE HIS ANSWER TO COMPLAINT WITHIN 10 DAYS OF THE NOTICE OF ENTRY OF ORDER.

(C) DEFENDANT/CROSS-DEFENDANT PAPEZ'S DEMURRER AND MOTION TO STRIKE CROSS-COMPLAINT: THE DEMURRER IS OVERRULED AND THE MOTION TO STRIKE IS DENIED. DEFENDANT/CROSS-DEFENDANT PAPEZ SHALL FILE AND SERVE HIS

ANSWER TO CROSS-COMPLAINT WITHIN 10 DAYS OF THE NOTICE OF ENTRY OF ORDER.

(D) CASE MANAGEMENT CONFERENCE: APPEARANCES ARE REQUIRED AT 3:00 P.M., FRIDAY, SEPTEMBER 11, 2026, IN DEPARTMENT THREE.

WITH THE EXCEPTION OF THE CASE MANAGEMENT CONFERENCE, NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.